

known to the plaintiff.” (*Id.* at p. 10:8-16, citing *Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 224 (*Champlin*), *Melican v. Regents of Univ. of California* (2007) 151 Cal.App.4th 168, 182 (*Melican*).)

Ultimately, the court is not persuaded by this argument. *Champlin*, and *Melican* are distinguishable. In *Champlin*, the Court of Appeal held that a “party cannot avoid summary judgment by relying on theories that are not alleged in the pleadings.” (*Champlin, supra*, 92 Cal.App.5th at p. 224, internal citation omitted.) Similarly, the Court of Appeal in *Melican* held that the plaintiffs “never sought to add the claim until they made their oral request during the summary judgment hearing over five years later. . . . It would be patently unfair to allow plaintiffs to defeat [the defendant’s] summary judgment motion by allowing them to present a ‘moving target’ unbounded by the pleadings.” (*Melican, supra*, 151 Cal.App.4th at p. 176.) Here, Guan filed the initial complaint in this matter roughly fifteen months ago, the Socher Declaration states that the newly alleged facts related to Chen were discovered after the FAC was filed, no summary judgment or adjudication motion is pending, and it appears that a trial date has yet to be scheduled.

Finally, Chen argues that Chen will suffer prejudice. (Opposition, pp. 14:15-15:1.) The court is not persuaded by Chen’s argument that leave to amend is prejudicial because Chen “would be effectively saddled with the burden of trying to defend claims properly made only as against Skyline. More than 15 months have passed which means that key evidence in the possession custody or control [sic] of Skyline has more than probably lost, along with the memories of witnesses.” (*Id.* at p. 14:24-15:1.) This case is roughly fifteen months old, it appears that no trial date has been set, and the court ultimately finds that the public policy favoring liberally allowing amendments to pleadings weighs in favor of granting the motion. The fact that the partes will need to continue litigating this case and conduct additional discovery is insufficient to show prejudice.

The court GRANTS Guan’s motion for leave to file the proposed SAC. Guan shall file and serve the proposed SAC within 10 days of this order.

Calendar Line 4

**Case Name:** *Zarghami v. Falaha*

**Case No.:** 25CV474036

According to the allegations of the first amended complaint (“FAC”), plaintiff Mohamad H. Zarghami (“Plaintiff”) and defendant Sara Falaha (“Defendant”) were married and share a minor child, and are parties in the Family Law matter *Falaha v. Zarghami* (Super. Ct. County of

Santa Clara, 2024, No. 24FL002138). (See FAC, ¶ 6.) Between May 2025 and the March 5, 2026 filing of the FAC, Defendant recorded no less than twelve confidential communications without his consent. (See FAC, ¶ 20.) Defendant also monitored Plaintiff's location through a GPS tracker, and through his laptop, documenting where he went and where he stayed overnight, without his consent and when Plaintiff was not with his daughter pursuant to their custody agreement. (See FAC, ¶ 21.) Defendant has threatened to release Plaintiff's private information and photographs and videos of Plaintiff to their community for the purpose of shaming him. (See FAC, ¶ 22.) On August 25, 2025, Plaintiff was granted a domestic violence restraining order ("DVRO") against Defendant for the above acts. (See FAC, ¶ 23.)

On March 5, 2026, Plaintiff filed the FAC against Defendant, asserting the following causes of action:

- 1) Statutory damages for invasion of privacy pursuant to Penal Code sections 637.2;
- 2) Invasion of privacy;
- 3) intentional infliction of emotional distress; and,
- 4) declaratory relief/permanent injunction.

Defendant specially moves to strike the FAC pursuant to Code of Civil Procedure section 425.16.

**I. DEFENDANT TAAGHOL'S SPECIAL MOTION TO STRIKE THE FAC PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16**

In *Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4<sup>th</sup> 53, the California Supreme Court established the trial court's duty in ruling on an anti-SLAPP motion to strike:

Section 425.16, subdivision (b)(1) requires the court to engage in a two-step process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant's